

Open Records Project v. Department of Energy - Cross-Motions for Summary Judgment

Cross-Motions for Summary Judgment in Open Records Project v. Department of Energy.

Procedural posture: District court granted summary judgment to the agency after reviewing sealed declarations and sample withheld records in camera. Record material:

The district court reviewed sample records in camera and granted summary judgment.

Issue: Vaughn index and agency declaration adequacy. Standard of review: de novo

summary judgment review. Record excerpt: Public redacted agency declaration. The

public declaration redacts technical details but describes the exemption categories.

Nature of suit: Freedom of Information Act. Lower tribunal: U.S. District Court for

the District of Maryland.